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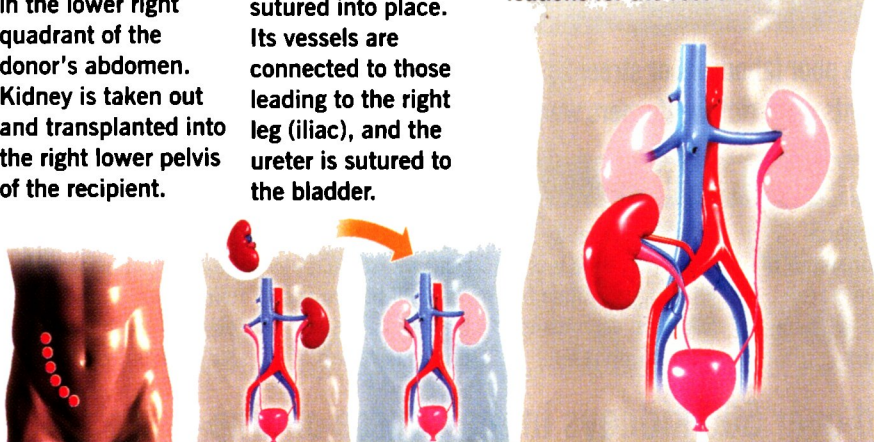
HOW A TRANSPLANT IS DONE

Two operations take place at a time in a kidney transplant—one on the donor and the other on the recipient

An incision is made in the lower right quadrant of the donor's abdomen. Kidney is taken out and transplanted into the right lower pelvis of the recipient.

The new kidney is sutured into place. Its vessels are connected to those leading to the right leg (iliac), and the ureter is sutured to the bladder.

In most cases, the recipient's native kidneys are left in place, and the transplanted kidney performs all the functions. Recipients have to take immuno-suppressive medications for the rest of their lives.



OLD LAWS AND THE NEW

The Transplantation of Human Organs Act 1994 is about to be bolstered up with new amendments and measures to check organ racketeering

THE ORIGINAL ACT

Commercial trading prohibited, organs may be removed for therapeutic purposes
Transplants banned, except when donated by relatives
Unrelated live donation out of "affection and attachment" permitted
Organs can only be removed from brain-dead people

NEW STRATEGY

Focus on cadaver organ donations from brain-dead people
A National Organ Transplantation Programme and transplant activity in every state capital
Online national register of transplants
National awareness programme to popularise organ donation

"In the pre-Act era, this constituted a substantive offence, 'cheating', under the Indian Penal Code," points out N.R. Madhava Menon, legal scholar and founder of the National Law School, Bangalore. As the Parliament hurriedly implemented THOA, the doctor went underground and spread his empire to other states that had not yet adopted the Central Act (health being a state subject). "Kumar is also wanted in similar cases in Jaipur, Guntur, Hyderabad and Mumbai," reports the Mumbai Police. Every time the law caught up with him, he got a bail, changed his identity, opened shop elsewhere, eventually migrating to Canada. Police say he holds numerous fake passports.

As the 1994 Act banned all commercial trade in organs, the activities of Kumar and a suspected dozen other doctors became a serious offence. "To prevent the black market from operating, the law has banned all organ transplants, except those donated by relatives (specified as spouse, son, daughter, father, mother, brother or sister)," adds Menon. Doctors beat the rap by using sophisticated methods. "The beauty of Kumar's outfit was that none of his cronies was fully clued in about the whole system," says Saini. "Donors were kept in the outlying woodland, while recipients were housed in his other properties in and around Gurgaon. Touts and assistants were

1.5 lakh new patients in India need kidney replacement every year

arrested the doctor's accomplices, though Kumar himself fled the coup. A nationwide hunt has been launched and Interpol has put out a red-corner notification for him across the world.

The Gurgaon doctor had first made his mark as a kidney racketeer—he then went by his real name Dr Suresh Rameshwar Raut—in Mumbai way back in the '80s. India was already the great organ bazaar of the world. "Trade in human organs was legal in India. We were quite out of step with the rest of the civilised world," says Dr Samiran Nundy, who was a member of the Singhvi Committee that framed The Transplantation of Human

Organs Act (THOA), 1994. In a country where one out of every three live in poverty, Kumar and his ilk carved out a huge transplant industry. After drugs controlling the body's rejection of foreign bodies hit the market in the late-'70s, he managed to set up a fake nursing home which, in the guise of an Ayurveda clinic, carried out transplants using unwilling, poor donors.

In 1993, he made it to the headlines as the mastermind behind a vicious trade in human organs, the country's first, that linked reputed nephrologists, police officers, international kidney brokers and consulate members in a network of supply and demand.

briefed only about the work they were being paid to do," he says. Their silence was ensured by the fact that most had sold off their own kidneys to the doctor. Lax regulations on the registry of private hospitals in Haryana helped Kumar keep the business clandestine.

"There's a clause in the law that permits unrelated donors to donate live kidneys, for reasons of 'affection and attachment'," explains Vineet Chawdhry, joint secretary with the Ministry of Health, "and this is where black marketers can enter." "There's nothing wrong with the intention of the law, only with its monitoring and surveillance," says Menon, who rec-